

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION AUTHORIZING THE MAYOR TO EXECUTE LIMITED SITE ACCESS AND DUE DILIGENCE AGREEMENTS FOR CITY-OWNED PROPERTY COMMONLY KNOWN AS BELVOIR RANCH.”

WHEREAS, the City of Cheyenne owns certain real property located in Laramie County, Wyoming, commonly known as Belvoir Ranch;

WHEREAS, the Belvoir Ranch was purchased by the City of Cheyenne for the benefit of the citizens of Cheyenne, including for public, municipal, operational, recreational, utility, and other lawful public purposes;

WHEREAS, from time to time, private companies and other entities may request limited access to portions of Belvoir Ranch for the purpose of conducting due diligence activities related to potential development, infrastructure, utility, energy, environmental, or other projects;

WHEREAS, limited due diligence activities may include, without limitation, surveying, mapping, topographic review, wetlands evaluation, preliminary geotechnical investigation, environmental review, site observation, or other similar temporary activities approved by the City;

WHEREAS, allowing limited, temporary, non-exclusive, and revocable access to Belvoir Ranch for due diligence purposes may assist the City in evaluating potential projects, gathering information, coordinating with interested entities, and determining whether any future proposal may warrant further consideration by the City;

WHEREAS, any such access shall be subject to written agreement and include appropriate protections for the City, the Belvoir Ranch, Board of Public Utilities operations and infrastructure, existing ranch operations, cultural and archaeological resources, environmental compliance, and restoration obligations;

WHEREAS, any site access and due diligence agreement authorized by this Resolution shall grant only a limited license to enter upon designated portions of Belvoir Ranch and shall not convey any leasehold, easement, ownership interest, development right, entitlement, or other real property interest;

WHEREAS, the Governing Body intends that such agreements be limited to temporary due diligence access only, and that the Mayor’s execution of such agreements shall not constitute approval of any proposed development project or any future property interest in Belvoir Ranch;

WHEREAS, the Governing Body further intends that the execution of any site access and due diligence agreement shall not constitute approval of, or bind the City to approve, any future project, development, lease, sale, easement, utility agreement, development agreement, land use approval, permit, or other project-related authorization; and

WHEREAS, any future development project, property interest, land use approval, development agreement, lease, easement, sale, utility commitment, or other approval requiring action by the Governing Body shall remain subject to separate review and approval by the Governing Body in accordance with applicable law.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Mayor is hereby authorized to execute site access and due diligence agreements allowing limited, temporary, non-exclusive, and revocable access to designated portions of Belvoir Ranch for due diligence activities, provided that each agreement is reviewed and approved as to form by the City Attorney's Office prior to execution;

BE IT FURTHER RESOLVED that any agreement executed under this Resolution shall be limited to due diligence activities and may include, as appropriate, activities such as surveying, mapping, wetlands evaluation, preliminary geotechnical investigation, topographic review, environmental review, site observation, and other similar temporary activities approved by the City;

BE IT FURTHER RESOLVED that any agreement executed under this Resolution shall include terms determined necessary or appropriate by the City to protect the public interest, including provisions addressing the scope of permitted activities, excluded areas, coordination with City and Board of Public Utilities representatives, insurance, indemnification, environmental compliance, cultural and archaeological resources, restoration, termination, governmental immunity, and any other provisions deemed necessary by the City Attorney's Office;

BE IT FURTHER RESOLVED that the Mayor's authority under this Resolution shall not include authority to approve any development project, grant any leasehold interest, easement, ownership interest, development right, entitlement, utility commitment, or other property interest in Belvoir Ranch, except as may be separately authorized by the Governing Body;

BE IT FURTHER RESOLVED that the authority granted to the Mayor under this Resolution is limited to the Mayor's current term of office and shall automatically expire at the conclusion of that term, unless renewed or extended by subsequent action of the Governing Body;

BE IT FURTHER RESOLVED that the execution of any site access and due diligence agreement under this Resolution shall not obligate the City to approve, support, negotiate, or enter into any future agreement related to any proposed project, development, lease, easement, sale, land use approval, permit, utility arrangement, or other project-related authorization; and

BE IT FINALLY RESOLVED that any future project or development requiring approval by the Governing Body shall be presented to the Governing Body for separate consideration and approval in accordance with applicable law.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____,
2026.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk